Automated License Plate Reader Operating Procedure

205.1 PURPOSE AND SCOPE

This standard operating procedure provides guidelines for the operation and accessing of SMPD's Automated License Plate Reader (ALPR) program and data. This document is intended to supplement SMPD Lexipol Policy 462.

Our Department currently uses four independent ALPR hardware and/or software technology platforms - Flock Safety Inc., PIPs Technology, Vigilant Solutions, and the Northern California Regional Intelligence Center (NCRIC) Astrometrics.. Our Department only subscribes to Vigilant Solutions for access to their ALPR data and does not utilize their hardware. We partner with the NCRIC to store the ALPR data we collect with PIPs and Flock, and our end-users access and review this data through PIPs, BOSS, Flock, Vigilant, and the NCRIC's web-based internet platform.

In accordance with the California Values Act, ALPR data may not be used for the purposes of immigration enforcement or other similar duties.

This Operating Procedure, along with SMPD Lexipol Policy 462, shall be posted conspicuously on our Department website.

205.2 DEFINITIONS

The following definitions for 'Operator' and 'End-User,' are listed in our Policy 462, and come from California Civil Code 1798.

"**Automated license plate recognition operator**" or "**ALPR operator**," means a person that operates an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee operating a vehicle or other item of equipment with ALPR cameras collecting license plate data.

"**Automated license plate recognition end-user**" or "**ALPR end-user**" means a person that accesses or uses an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee accessing historical data that is collected and stored in a centralized database(s).

205.3 ALPR OPERATOR TRAINING

Prior to the operation of the our Department approved ALPR system, any person operating a system shall complete Department approved training. The training will be coordinated by the Department Training Division, and shall include the following:

- A general review of the functionality of the system
- The authorized purposes for operating the ALPR system.
- How to access the software system, by way of a login/password protected registry

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- How our vendors maintain logs of access and use
- How our vendors retain and purge data from their systems
- How our vendors maintain system security to protect collected data
- How to trouble-shoot and report basic malfunctions

Departmental Operator training will be included in the on-boarding process for new personnel. Records of this training shall be maintained by our Training Division. Additional or refresher training will be determined by the department's system administrator.

205.4 ALPR END-USER TRAINING

Prior to accessing the ALPR platforms to review data as end-users, any person doing so shall complete Department approved training. The training will be coordinated by the Department Training Division, and shall include the following:

- A general review of how the ALPR Platform works
- The authorized purposes for accessing the ALPR platform
- How to access the software system, by way of a login/password protected registry
- How the ALPR platform maintains logs of operator access and use
- How the ALPR platform retains and purges data from its systems

Any person(s) using the ALPR platform as end-user shall complete Department approved training.

205.5 ALPR SYSTEM MONITORING AND AUDITING

The Support Services Captain has administrative responsibility for the ALPR platforms. This responsibility may be delegated to a designee as appropriate.

205.5.1 ALPR PLATFORM AUDITS

PIPs Technology

Data captured via the PIPs Technology PAGIS software program on our patrol mobile units are transmitted via the mobile unit’s cellular connection to the BOSS search engine server operated by NCRIC. This data is retained on the PIPs Technology processor in the mobile unit until the operator exits the software program. At that point all data recorded during that session is purged from the mobile unit as well as the PIPs Technology server.

A record of the operator’s use of the PIPs Technology system is maintained by PIPs, and available for review and audit by SMPD. This record includes the following:

- The device used to capture data
- The date, time, and location of the data capture
- General information on use of the system (how many license plates uploaded to the server, etc).

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Vigilant Solutions Platform

Data captured via Vigilant Solution's software platform is securely hosted by Verio, a subsidiary of NTT Communications. This data, license plate, date, time, and location are retained and automatically deleted from the server based on our own retention policy. A record of the end-user access to the Vigilant Solutions platform is also maintained by Verio, and available for review and audit by SMPD. This record includes the following:

- End-User usage information, to include entry of system sign-on information (username, password, etc)
- Date and time of access
- Entry of required search information by the End-User (case number, etc)
- Connection between searched data and listed justification for the search
- Any other relevant information as determined by the person conducting the audit

Flock Safety Hardware and Software Platform

Data captured via Flock Safety Inc. is hosted in the cloud using Amazon Web Services and stores license plate data such as date, time, location, photo of plate and video footage. License plate data is held in the server based on our own retention policy. Video footage is held for 30 days, then it is automatically deleted and purged from their system. Access to the data requires VPN and/or multi-factored authentication. Security, monitoring, and auditing of data maintained in the Flock Safety Amazon Web database, as well as the end-user review of such data, is described in the Flock Safety "Government Agency Customer Agreement." A record of the operator's use of the Flock Safety platform is also maintained by Amazon Web Services and available for review and audit by SMPD.

This record includes the following:

- The device used to capture data
- The date, time, and location of the data capture
- General information on use of the system (how many license plates uploaded to the server, etc).
- Operator usage, to include entry of system sign-on information (username, password, etc)
- Date and times of access
- Entry of required search information by the End-User (case number, etc)
- Connection between searched data and listed justification for the search
- Any other relevant information as determined by the person conducting the audit

NCRIC Astrometrics Platform

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The security, monitoring, and auditing of data maintained in the NCRIC databases, as well as end-user review of such data is described in the NCRIC's "Automated License Plate Reader Policy." This policy is maintained by NCRIC.

The Support Services Captain, or their designee, shall conduct audits of end-users usage of the NCRIC platform on a quarterly basis to ensure compliance with Lexipol policy 462, this procedure, and Civil Code 1798. Our Department can obtain such data for the purposes of an audit directly from the NCRIC. The results of these audits shall be submitted to the Support Services Captain for their review.

Audits should review information such as:

- End-user access, to include entry of system sign-on information (username, password, etc)
- Date and time of access
- Entry of required search information by the End-User (case number, etc)
- Connection between searched data and listed justification for the search
- Any other relevant information as determined by the person conducting the audit

The Support Services Captain, or their designee, shall conduct audits of operators use of the PIPs Technology, Flock Safety, Vigilant Solutions, and BOSS and NCRIC platforms on a quarterly basis to ensure compliance with Lexipol policy 462 and Civil Code 1798. The results of these audits shall be submitted to the Support Services Captain for their review.

Audits should review information such as:

- Proper maintenance of system security
- Date, times, and location of operation
- Amount of license plate data collected and proper quality of data (photographs of sufficient quality, license plate data uploaded matches information listed in photographs, etc)
- Any other relevant information as determined by the person conducting the audit

205.6 PROTOCOL REVIEW

This Standard Operating Protocol should be reviewed on an annual basis with the Support Services Captain, or their designee, and any other person(s) as determined by the Support Services Captain.

205.7 ALPR COMMITTEES

ALPR Steering Committee

An ALPR Steering Committee will include the Support Services Captain, Communications and Records Manager, Traffic Lieutenant, and Investigations Lieutenant. The Steering Committee will provide direction to the ALPR subcommittee as changes in policy, legislation, and/or best

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practices are identified and work with Command Staff, City Attorney's Office, or other appropriate stakeholders to ensure the ALPR program conforms with all relevant requirements and standards.

ALPR Subcommittee

The ALPR Subcommittee will consist of an Investigations Sergeant, a Traffic Sergeant, the Police IT Senior Systems Analyst, and designated officers from Traffic, Investigations, and Patrol. They will meet to discuss research and develop new policy and procedure updates, equipment issues, consolidation of different platforms and other projects.

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